

Chief Justice's Court

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan

Hon'ble Shiva Kirti Singh, Chief Justice

Hon'ble Dilip Gupta, J.

Let the name of Sri Amrit Lal Yadav, appear as counsel for the respondent-Power Corporation.

List the matter in the next cause list.

Order Date :- 12.3.2013

NSC

Chief Justice's Court

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan

Hon'ble Shiva Kirti Singh, Chief Justice

Hon'ble Dilip Gupta, J.

Mr. Bidhan Chandra Rai, learned counsel for the petitioner informs the Court that petitioner is no more and hence required steps have to be taken. As prayed, two weeks time is granted for that.

List the matter after two weeks.

Order Date :- 3.4.2013

NSC

Court No. - 39

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Counsel for Petitioner :- Bidhan Chandra Rai, B.C. Rai

Counsel for Respondent :- W.H. Khan, Amrit Lal
Yadav, Mahboob Ahmad, S.C.

Hon'ble Dilip Gupta, J.

Hon'ble Amar Singh Chauhan, J.

Civil Misc. Delay Condonation Application No. 190852 of 2013.

Heard learned counsel for the parties.

In view of the averments made in the affidavit filed in support of the application under Section 5 of the Limitation Act, we are satisfied that the applicant was prevented by sufficient cause from preferring the substitution application within the period of limitation.

The application is, accordingly, allowed and the delay in filing the substitution application is condoned.

Civil Misc. Substitution Application No. 190853 of 2013;

Heard learned counsel for the parties.

The application is allowed. Let the substitution be carried out within ten days.

Order on Order sheet:

List this petition on 8 August 2017 showing the name of Sri Baleshwar Chaturvedi as learned counsel for the respondents.

Order Date :- 7.7.2017

AKK

(Dilip Gupta, J.)

(Amar Singh Chauhan, J.)

Court No. - 34

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Counsel for Petitioner :- Bidhan Chandra Rai, B.C. Rai

Counsel for Respondent :- W.H. Khan, Amrit Lal Yadav, Baleshwar Chaturvedi, Mahboob Ahmad, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Om Prakash-VII, J.

1. Request for adjournment has been made on behalf of petitioner.
2. As prayed, list in the next cause list.
3. Sri Ashutosh Dwivedi, Advocate, has put in appearance on behalf of respondents. His name shall be shown in the cause list as counsel for respondents, when the case is next listed.

Order Date :- 30.10.2018

PS

Court No. - 34

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Counsel for Petitioner :- Bidhan Chandra Rai, B.C. Rai

Counsel for Respondent :- W.H. Khan, Amrit Lal
Yadav, Baleshwar Chaturvedi, Mahboob Ahmad, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Om Prakash-VII, J.

As requested by Sri B.C. Rai, learned counsel for petitioner, put
up on 19.11.2018.

Order Date :- 13.11.2018

Siddhant Sahu

Court No. - 34

Case :- WRIT - C No. - 44593 of 2005

Petitioner :- Tejinder Singh

Respondent :- U.P. Power Cor. Ltd. Shakti Bhawan And Others

Counsel for Petitioner :- Bidhan Chandra Rai, B.C. Rai

Counsel for Respondent :- W.H. Khan, Amrit Lal Yadav,
Baleshwar Chaturvedi, Mahboob Ahmad, S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Om Prakash-VII,J.

1. Heard Sri B.C. Rai, learned counsel for petitioner and Sri Ashutosh Dwivedi, learned counsel appearing for respondents.
2. This writ petition is directed against Assessment Orders dated 13.12.2004 and 12.05.2005 (Annexures-11 and 14 to the writ petition, respectively) passed by respondent-3, Executive Engineer, Electricity Urban Distribution Division-IV Dakshinanchal Vidyut Vitran Nigam Limited, Agra Fort Power House, Agra, (hereinafter referred to as "Executive Engineer") whereby penalty of Rs. 9.28 lacs has been imposed upon petitioner. Petitioner has also sought a writ of certiorari for quashing Checking Report dated 24.11.2004 (Annexure-4 to the writ petition).
3. It is submitted by learned counsel for petitioner that vigilance checking was made at petitioner's premises on 24.11.2004. Checking team noted in Inspection Report that there was an excess load and meter seals were also tampered. Executive Engineer passed assessment bill dated 13.12.2004 in purported exercise of power under Section 126 of Electricity Act, 2003 (hereinafter referred to as "Act, 2003") read with para 6.17.1 of U.P. Electricity Supply Code, 2002 (hereinafter referred to as "Code"). He further submitted that assessment order is non-speaking and, inasmuch as, penalty of Rs. 9.28 lacs imposed upon petitioner is without disclosing how aforesaid amount has been arrived. Lastly, he argued that rate of tariff

applied is contrary to Section 126(6) of Act, 2003.

4. Learned counsel for respondents draw our attention to para 93 of paper book and stated that calculation details are given therein.

5. We have gone through said calculation details which is a photocopy of the file of the office of Executive Engineer. We find that penalty was calculated on excess load found by Checking Team at petitioner's premises. While making assessment, penalty has been calculated at the thrice rate of tariff on the units assessed whereas in accordance with Section 126(6) of Act, 2003, assessment is required to be made at the rate equal to one-and-half-times of tariff applicable. Relevant Section 126(6) of Act, 2003 read as under :-

*“(6) The assessment under the section shall be made at a rate equal to **one-and-half times the tariff applicable** for the relevant category of services specified in Sub-section (5)”*

(Emphasis added)

6. Learned counsel for respondents could not dispute aforesaid fact and admitted that in the present case, thrice the rate of the tariff applicable has been charged, though, it could only have been one-and-half times.

7. In view thereof, writ petition is allowed. Impugned orders dated 13.12.2004, 12.05.2005 passed by Executive Engineer, Electricity Distribution are hereby set aside. Respondent-Competent Assessing Authority is directed to pass a fresh order of assessment by computing the amount of penalty applying one-and-half time rate of tariff applicable on the units assessed and the said amount would be paid by petitioner within one month.

Order Date :- 19.11.2018
Siddhant Sahu